

22AHCV00029 22AHCV00029

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-27

Motion: MOTION FOR ORDER PERMITTING PLAINTIFF TO APPEAR REMOTELY AT TRIAL

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F27%2F2026

Source SHA-256: f89d4ebc177cd36a6f8dc6b03e260a9e8768d31ed5849852b03fc92a1e406e4a

Case Number: 22AHCV00029 Hearing Date: August 27, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

XIAO FAN
PENG, et al.,

Plaintiff(s),

vs.

YUN
XIANG TSENG, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 22AHCV00029

[TENTATIVE]

ORDER RE: MOTION FOR ORDER PERMITTING PLAINTIFF TO APPEAR REMOTELY AT
TRIAL

Dept.

3

8:30

a.m.

August

27, 2026

)

I.

INTRODUCTION

Plaintiff Xiao Fan Peng ("Plaintiff")

moves for an order permitting her to appear remotely at the trial scheduled for November 8, 2026. The motion is made pursuant to Code of Civil Procedure section 367.75 and CRC 3.672. Plaintiff argues that a remote appearance is necessary because she is a resident of China, currently resides in China, does not possess a visa to enter the United States, and would be subjected to substantial hardship and expense if required to appear in person at trial.

II.

LEGAL

STANDARD

Except as otherwise provided by law, upon any party's motion, the court may conduct a trial through the use of remote technology, absent a showing by the opposing party as to why a remote appearance or testimony should not be allowed. (Code Civ. Proc., § 367.75, subd. (d)(10).) "The court may require a party to appear in person at a proceeding ... (1) If the court determines on a hearing-by-hearing basis that an in-person appearance would materially assist in the determination of the proceeding or in the effective management or resolution of the case." (CRC 3.672, subd. (d)(1); see Code Civ. Proc., § 367.75, subd. (b)(3).)

III.

DISCUSSION

Plaintiff wishes to testify remotely from China on the grounds that she does not possess a visa to enter the United States and that traveling to the United States for travel would cause substantial hardship and expense, including financial expenses and difficulties managing her personal and professional responsibilities.

In opposition, Defendant raises several legitimate questions regarding the legality of providing testimony through video under Article 277 of the Chinese Civil Law ("Article 277"). Article 277 provides that "no foreign authority or individual is allowed to serve process, conduct investigation, or obtain evidence within the borders of People's Republic of China without permission" from the country's Central Authority. In *Junjiang Ji v. Jling Inc.* (E.D.N.Y Mar. 31, 2019 , No. 15-CV-4194 (SIL)) 2019 WL 1441130, the district court struck the plaintiff's trial testimony that took place via video link while located in mainland China on the grounds that the testimony was unlawful under Chinese law, subjecting those who participated in proceedings to fines, criminal liability, and deportation. (*Id.*, at * 10-11.) The United States Department of State also warns attorneys that taking voluntary or compelled testimony and obtaining other evidence must occur through China's Central Authority. (U.S. Dept. of State, China Judicial Assistance Information, "Taking Voluntary Depositions of Willing Witnesses" <<https://travel.state.gov/content/travel/en/legal/Judicial-Assistance-Country-Information/China.html>>

[as of Aug. 26, 2026].)

In response, Plaintiff does not dispute

Defendant's recitation of Chinese law but argues that the California statute does not allow the Court to consider the specific geographic location from which a witness may testify. This argument lacks merit because Code of Civil Procedure section 367.75, subdivisions (b) and (d) are both prefaced by the phrase: "Except as otherwise provided by law..." Plaintiff does not submit evidence of any attempts to comply with Article 277 by making arrangements with China's Central Authority to provide testimony and multiple federal courts have recently acknowledged the unsuitability of requiring depositions or even voluntary testimony from witnesses physically located in mainland China. (See Zhizheng Wang v. Hull (W.D. Wash., June 22, 2020, No. C18-1220RSL) 2020 WL 4734930, at *1; see also Inventus Power v. Shenzhen Ace Battery (N.D. Ill. 2021) 339 F.R.D. 487, 500 [allowing testimony from Macau].)

In addition to Defendant's concerns about

Chinese law, the Court is inclined to deny Plaintiff's motion because there is no detail in Plaintiff's declaration about her attempts to obtain a visa for trial or the specific hardships she would face in testifying in the United States compared to testifying in China while taking time zone differences into consideration. The Court is also concerned about certain logistics; for instance, it is unclear whether there is a need for an interpreter and any scheduling issues associated with such a need. The Court also observes that Plaintiff's damages consist of emotional injury, and that remote testimony may not allow the jury the best opportunity to see and hear plaintiff's testimony on this highly personal issue.

IV.

CONCLUSION

Plaintiff's motion is DENIED.

Dated

this 27th

day of August 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.